FICTIONAL SAMPLE. Not a real case, not filed with any court, and not legal advice.

Washington change order law: brief answer

Rivera v. Cedar Hollow Remodeling LLC, a fictional home remodel dispute. This report covers whether an unsigned change order can support a demand for more money, whether stopping work over it was a breach, and what could defeat a motion for partial summary judgment under CR 56.

Rivera v. Cedar Hollow Remodeling LLC, No. 00-2-00000-0 SAMPLE · Prepared 3 November 2026. Each case is tagged CHECKED IN OPINION, or READ AS QUOTED when it was read through the source named in its citation. No unpublished or out-of-state case is relied on.

Bottom line

On the papers so far, the position is strong on the $9,400. Section 7 required a signed change order, none exists, and Ms. Rivera asked for one in writing before any extra work. The weak point is the breach claim. Materiality is a question of fact, Washington courts do enforce waiver of written change order clauses, and two facts are still unknown: whether any extra electrical work was done with her knowledge, and whether the $12,000 balance was due when the crew left.

Your question: Can I get partial summary judgment on liability when Cedar Hollow stopped work over an unsigned change order?

1. Probably on the change order, if the record stays as it is. Absent waiver, failure to follow a contract's change procedure bars the claim. *Mike M. Johnson*, **150 Wn.2d 375, 386**. Section 7 is that kind of clause, and Ex. B at 1 shows you asked for the paper first.

2. Possibly on breach, with more risk. The July 11 text says the crew will not return until paid (Ex. B at 2), and the cabinets, countertops and backsplash were never installed. Courts treat materiality as a question of fact, so Cedar Hollow may be able to create a dispute. *Top Line*, slip op. at 12-13.

3. Damages stay out of this motion. The likely measure is the reasonable cost of completing the work. *Eastlake*, **102 Wn.2d 30, 32**. That is the $21,750 quote (Ex. C) less the $12,000 unpaid, or about $9,750.

The three strongest arguments

1

Section 7 means what it says

Courts enforce the words the parties used. *Hearst*, **154 Wn.2d 493, 503-04**. Section 7 requires a written change order signed by both parties before the work is done. "Change Order 2" was an invoice nobody signed. Failure to comply with a change order provision "is fatal to a later claim for compensation based on extra work." *Clevco*, **59 Wn. App. 536, 542**. Caution: *Mike M. Johnson* and *Clevco* are public works cases. Expect Cedar Hollow to say a home remodel is different.

2

Nothing you did waived the clause

Waiver by conduct "requires unequivocal acts of conduct evidencing an intent to waive." *Mike M. Johnson*, **150 Wn.2d at 386, 391**. Actual notice of the claim is not enough. *Id.* at 377. Your July 2 reply, "Please send the change order before doing any extra work," points the other way. Equivocal conduct is not waiver. *American Safety*, **174 P.3d 54, ¶ 16**. Caution: *Mike M. Johnson* was a 5 to 4 decision, and *American Safety* n.7 leaves room for waiver when an owner directs work to go ahead.

3

Walking off the job was the breach

A breach is actionable when the contract imposes a duty, the duty is breached, and the breach causes damage. *Nw. Indep. Forest Mfrs.*, **78 Wn. App. 707, 712**. Cedar Hollow agreed to finish for a fixed $48,000. It left the job on July 10 with work undone and tied its return to money Section 7 did not allow. A material breach discharges the other side's duty. *Jacks*, **39 Wn.2d 277, 285**. Caution: Cedar Hollow will say your unpaid $12,000 came first, so the payment terms in Section 3 matter.

Case table

Unpublished and out-of-state cases are never treated as binding.

CASE	HOLDING	USE
Mike M. Johnson, Inc. v. County of Spokane **150 Wn.2d 375, 377, 386, 391, 78 P.3d 161 (2003)**, Washington Supreme Court, published, 5 to 4	Actual notice is not an exception to mandatory contractual protest and claim procedures. Absent waiver, failure to comply bars relief. Waiver by conduct takes unequivocal acts.	HELPS · CHECKED IN OPINION Lead case. The county kept saying it was not waiving. Your July 2 text does the same work. Public works contract, so expect an attempt to distinguish it.

CASE	HOLDING	USE
American Safety Casualty Insurance Co. v. City of Olympia **162 Wn.2d 762, 174 P.3d 54, ¶¶ 16, 18 & n.7 (2007)**, Washington Supreme Court, published	Equivocal conduct is not waiver, and agreeing to negotiate, without more, is not an implied waiver. Footnote 7 says directing a contractor to focus on the work rather than the paperwork could arguably be implied waiver.	BOTH CHECKED IN OPINION Use it if Cedar Hollow points to your texts as negotiation. Be ready for n.7 if anyone told the crew to keep going.
Clevco, Inc. v. Municipality of Metropolitan Seattle **59 Wn. App. 536, 542, 799 P.2d 1183 (1990)**, Court of Appeals, published, as quoted in *Mike M. Johnson*	Failure to comply with a change order provision is fatal to a later claim for compensation based on extra work.	HELPS READ AS QUOTED The closest language to Section 7. Read the full opinion before quoting it.
Absher Construction Co. v. Kent School District No. 415 **77 Wn. App. 137, 142-43, 890 P.2d 1071 (1995)**, Court of Appeals, published, as discussed in *Mike M. Johnson*	Contractors generally must follow contract notice provisions unless the procedures are waived.	HELPS READ AS QUOTED Source of the unequivocal acts standard.
Hearst Communications, Inc. v. Seattle Times Co. **154 Wn.2d 493, 503-04, 115 P.3d 262 (2005)**, Washington Supreme Court, published	Washington follows the objective manifestation theory. Words get their ordinary meaning, and courts interpret what was written, not what was intended to be written.	HELPS CHECKED IN OPINION Supports reading Section 7 as written.
Northwest Independent Forest Manufacturers v. Department of Labor & Industries **78 Wn. App. 707, 712, 899 P.2d 6 (1995)**, Court of Appeals, published	A breach of contract is actionable only if the contract imposes a duty, the duty is breached, and the breach proximately causes damage.	HELPS CHECKED IN OPINION Gives you the three things to prove.

CASE	HOLDING	USE
Jacks v. Blazer **39 Wn.2d 277, 285, 235 P.2d 187 (1951)**, Washington Supreme Court, published, as quoted in WPI 302.03	A breach so material that it justifies refusing to perform discharges the other party's duty.	HELPS READ AS QUOTED Answers the argument that you still owe the $12,000 in full.
Eastlake Construction Co. v. Hess **102 Wn.2d 30, 32, 686 P.2d 465 (1984)**, Washington Supreme Court, published	Adopts Restatement (Second) of Contracts § 348 for construction damages. It allows the reasonable cost of completing performance if that cost is not clearly disproportionate to the probable loss in value.	HELPS CHECKED IN OPINION Measure of damages at the later stage. The Ex. C quote fits it.
Young v. Key Pharmaceuticals, Inc. **112 Wn.2d 216, 225, 770 P.2d 182 (1989)**, Washington Supreme Court, published	The moving party bears the initial burden of showing there is no issue of material fact.	BOTH CHECKED IN OPINION Sets the standard. As the party moving, you carry the first burden with admissible evidence.
Top Line Builders, Inc. v. Bovenkamp **179 Wn. App. 794, 320 P.3d 130 (2014)**, Court of Appeals, published. Pinpoints are to the slip opinion at 7, 12-13	On a private house with a fixed price and a signed change order clause, a written extra work condition may be waived by conduct. Waiver can be shown by evidence the owner authorized, permitted, or directed the work. Materiality of a breach is a question of fact.	HURTS: DISTINGUISH CHECKED IN OPINION The most dangerous case. There the owner requested the extras. You asked for the change order first and never approved the work.
Bignold v. King County **65 Wn.2d 817, 822-24, 399 P.2d 611 (1965)**, Washington Supreme Court, published	An owner who knew of changed conditions and ordered the extra work could not defeat recovery for lack of written notice. The county was also estopped from objecting that its own oral order was not in writing.	HURTS: DISTINGUISH CHECKED IN OPINION The owner gave the order. *Mike M. Johnson* reads *Bignold* as knowledge plus a direction to proceed, not notice alone.

CASE	HOLDING	USE
American Sheet Metal Works, Inc. v. Haynes **67 Wn.2d 153, 158-59, 407 P.2d 429 (1965)**, Washington Supreme Court, published, as cited in *Top Line*	A contract condition requiring written approval of extra work may be waived by the parties' conduct.	HURTS: DISTINGUISH READ AS QUOTED Same answer as *Top Line*. Read the full opinion before responding to it.
Berg v. Hudesman **115 Wn.2d 657, 667, 801 P.2d 222 (1990)**, Washington Supreme Court, published, as cited in *Top Line* and *Hearst*	Extrinsic evidence of the circumstances is admissible to find the parties' intent, even without an ambiguity.	BOTH READ AS QUOTED Cedar Hollow can offer past dealings, including any earlier change order. Your texts come in the same way.
Robblee v. Robblee **68 Wn. App. 69, 841 P.2d 1289 (1992)**, Court of Appeals, published, as cited in WPI 303.06	The party claiming a failure to mitigate carries the burden of proof.	HELPS READ AS QUOTED Matters later, if Cedar Hollow says you waited too long to hire someone else.
Public Utility District No. 2 of Pacific County v. Comcast of Washington IV, Inc. **184 Wn. App. 24, 336 P.3d 65 (2014)**, Court of Appeals, published, as cited in WPI 303.06	The party claiming a failure to mitigate carries the burden. The trial court properly denied a reduction for it.	HELPS READ AS QUOTED A second cite for the same point.

What CR 56 and Section 7 actually require

Burden. You move first, so you must show there is no issue of material fact on each element. *Young*, **112 Wn.2d at 225**. Your declaration needs to put Exs. A, B and C in the record.

Section 7. It has three parts: a writing, both signatures, and timing before the work is done. The July 8 invoice is a writing, but neither party signed it.

Waiver. The two lines of cases need care. *Mike M. Johnson* asks for unequivocal acts. *Top Line* says waiver can be shown by evidence the owner authorized, permitted, or directed the work. Address both in the motion.

Registration. A contractor cannot sue for compensation or breach unless it alleges and proves it was registered when it contracted. **RCW 18.27.080**. This limits any counterclaim. It does not prove your claim.

Searched for and not found: No published Washington case with this exact pattern, where the owner asked in writing for a change order before the work and the contractor then stopped work over an unsigned one. The argument is built by analogy.

Recommended order of argument

1. Main position: Section 7 was not met and was not waived, so the $9,400 is not owed.
2. Next: refusing to return until paid that sum was a breach of the fixed price agreement.
3. In the alternative: if materiality is disputed, ask for partial judgment on the change order alone, so that issue is settled before trial.
4. Reserve damages, including the $21,750 completion cost and the credit for the unpaid $12,000.

Check before filing: open questions

- ☐ **Was any extra electrical work done after July 2?** If the crew did it with your knowledge, *Top Line* gets much closer. If no work was done, Cedar Hollow has little to bill for.
- ☐ **Was there a Change Order 1?** The July 8 invoice is labeled Change Order 2. An earlier change handled loosely could be offered as past conduct under *Berg*.
- ☐ **Was the $12,000 due when the crew left?** Check the Section 3 payment schedule. If a payment was overdue on July 10, Cedar Hollow may claim you breached first.
- ☐ **What happened to the June 30 finish date?** Work ran past Section 4 without a written extension on file. Know why before Cedar Hollow explains it.

- [ ] **Is Cedar Hollow registered?** Look it up with the Department of Labor & Industries for the March 3, 2025 contract date. RCW 18.27.080 turns on registration at that time.

- [ ] **Read the opinions tagged READ AS QUOTED.** *Clevco*, *Absher*, *Berg*, *Jacks*, *American Sheet Metal*, *Robblee* and *PUD No. 2* were read through another source, not in full.

- [ ] **Convert the *Top Line* slip opinion pages to reporter pages.** The published opinion was revised from the slip opinion, so confirm the language and pages in the official report.

Sources

- Mike M. Johnson, Inc. v. County of Spokane: https://law.justia.com/cases/washington/supreme-court/2003/72900-0-1.html
- American Safety Cas. Ins. Co. v. City of Olympia: https://law.justia.com/cases/washington/supreme-court/2007/79001-9-3.html
- Bignold v. King County: https://law.justia.com/cases/washington/supreme-court/1965/37276-1.html
- Top Line Builders, Inc. v. Bovenkamp (slip opinion): https://www.courts.wa.gov/opinions/pdf/692259.pdf
- Hearst Communications, Inc. v. Seattle Times Co.: https://law.justia.com/cases/washington/supreme-court/2005/75400-4-1.html
- Eastlake Construction Co. v. Hess: https://law.justia.com/cases/washington/supreme-court/1984/49191-7-1.html
- Young v. Key Pharmaceuticals, Inc.: https://law.justia.com/cases/washington/supreme-court/1989/54592-8-1.html
- Northwest Independent Forest Manufacturers v. Dep't of Labor & Industries: https://law.justia.com/cases/washington/court-of-appeals/1995/78-wash-app-707.html
- Berg v. Hudesman: https://law.justia.com/cases/washington/supreme-court/1990/56656-9-1.html
- RCW 18.27.080: https://app.leg.wa.gov/rcw/default.aspx?cite=18.27.080
- WPI 302.03, material breach, Washington Pattern Jury Instructions (Civil)
- WPI 303.06, mitigation of damages, Washington Pattern Jury Instructions (Civil)
